Igor Fradkin, Esq., State Bar No. 299491
DOWNTOWN L.A. LAW GROUP
910 S. Broadway
Los Angeles, CA 90015
Tel: (213)389-3765
Fax: (877)389-2775
Email: Igor@downtownlalaw.com

Attorneys for Plaintiff,
CHARLA WILLIAMS

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
05/08/2024
Clerk of the Court
BY: MARK UDAN
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

CGC-24-614480

CHARLA WILLIAMS, an individual. Plaintiff, v. SAFEWAY INC., a Delaware corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; JOHN DOE, an individual; and DOES 1 TO 100, inclusive. Defendants.	Case No.: **COMPLAINT FOR DAMAGES** **1. ASSAULT** **2. BATTERY** **3. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS** **4. NEGLIGENCE** **5. NEGLIGENT HIRING, SUPERVISION AND RETENTION** [JURY DEMANDED]

COMES NOW, Plaintiff, CHARLA WILLIAMS, and alleges against Defendants, and each of them, as follows:

PARTIES

1. At all times relevant herein, Plaintiff CHARLA WILLIAMS ("Plaintiff"), was and is a resident of the County of San Francisco, State of California.

2. Plaintiff is informed and believes, and based upon such information and belief alleges that at all times relevant hereto Defendants SAFEWAY INC., a Delaware

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corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; and DOES 1 TO 100, inclusive, are corporations organized and existing under and by virtue of the laws of the State of California with its principal place of business in the County of San Francisco, California.

3. Plaintiff is informed and believes, and based upon such information and belief alleges that at all times relevant hereto Defendants JOHN DOE, an individual; and DOES 1-100, inclusive, are, and at all times herein mentioned were individuals, corporations, sole proprietors, shareholders, associations, partners and partnerships, joint ventures, and/or business entities unknown, primarily residing and doing business in the County of San Francisco, State of California.

4. Plaintiff is informed and believes, and based upon such information and belief, alleges that at all times relevant hereto Defendant JOHN DOE, an individual and resident of the County of San Francisco, California and a direct employee of Defendants SAFEWAY INC., a Delaware corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; and DOES 1 TO 100, inclusive.

5. Defendants DOES 1-100, inclusive, are sued herein under fictitious names, their true names and capacities being unknown to Plaintiff. Plaintiff will amend this complaint to allege their true names and capacities when ascertained. Plaintiff is informed and believes and thereon alleges that each of the fictitiously named Defendants is responsible in some manner for the occurrences herein alleged, and that Plaintiff's damages as herein alleged were proximately caused by those Defendants.

6. At all times herein mentioned, Defendants, and each of them, were the agents, servants, and employees of their co-defendants, and in doing the things hereinafter alleged were acting in the scope of their authority as agents, servants, and employees, and with permission and consent of their co-defendants. Plaintiff is further informed and believes, and thereon alleges, that each of the Defendants herein gave consent to, ratified, and authorized the acts alleged herein to each of the remaining Defendants.

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7. The location of the incident(s) giving rise to this action occurred at or near 1335 Webster St., San Francisco, CA 94115, in the State of California, County of San Francisco ("The Subject Premises").

GENERAL ALLEGATIONS

8. On or about January 20, 2023, Plaintiff was a patron at the subject premises. Plaintiff was entering the subject premises when Defendant JOHN DOE denied her entry and told her the store was closing. Defendant JOHN DOE, suddenly and without warning, physically attacked and assaulted Plaintiff with such force that Plaintiff suffered injuries and damages.

9. The force of Defendant JOHN DOE's assault to Plaintiff's body caused Plaintiff to suffer physical injuries and damages.

10. At no time before, during or after the attack did Plaintiff batter or attempt to batter Defendant JOHN DOE.

11. As a result of the aforementioned conduct, Plaintiff was physically and psychologically damaged, incurred medical bills, sustained disability and had to retain an attorney and has incurred legal costs in connection therewith in order to prosecute this action.

FIRST CAUSE OF ACTION

(Assault Against Defendant JOHN DOE)

12. The preceding paragraphs of this Complaint are incorporated by reference.

13. On or about January 20, 2023, Defendant JOHN DOE acting within the course and scope of his employment as a security officer engaged by Defendants, and each of them, intentionally acted with the intent to cause harmful contact approached Plaintiff and violently assaulted him at the subject premises.

14. Believing she was about to be touched in a harmful manner, the Plaintiff attempted to avoid contact with Defendant JOHN DOE.

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15. Defendant JOHN DOE aggressively approached the Plaintiff, leaning forward and getting within inches of her person, and in a loud bellicose manner threatened to touch and/or grab Plaintiff in a harmful manner such that it reasonably appeared that Defendant JOHN DOE was about to carry out the threat.

16. Plaintiff did not consent to Defendant JOHN DOE's conduct.

17. As a result of Defendant JOHN DOE's conduct the Plaintiff was physically and psychologically damaged, incurred medical bills, sustained disability and had to retain an attorney and has incurred legal costs in connection therewith in order to prosecute this action.

18. Defendant JOHN DOE's threatening and aggressive behavior was a substantial factor in Plaintiff's fear for Plaintiff's reasonable physical person and her sense of personal dignity.

19. Defendant JOHN DOE's malicious and oppressive despicable conduct set forth above was intended to cause injury to the Plaintiff and subjected the Plaintiff to cruel and unjust hardship with a willful and conscious disregard for the Plaintiff's rights and safety such that Defendant is subject to punitive damages as set forth in California Civil Code § 3294.

SECOND CAUSE OF ACTION

(Battery Against Defendant JOHN DOE)

20. The preceding paragraphs of this Complaint are incorporated by reference.

21. On or about January 20, 2023 Defendant JOHN DOE acting within the course and scope of his employment as a security officer engaged by Defendants, and each of them, Defendant JOHN DOE intentionally and with the intent to harm, forcefully and physically attacked Plaintiff; Defendant JOHN DOE, suddenly and without warning, physically attacked and assaulted Plaintiff with such force that Plaintiff suffered injuries and damages.

22. Plaintiff did not consent to Defendants' conduct.

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23. As a result of Defendant JOHN DOE's conduct, the Plaintiff was physically and psychologically damaged, incurred medical bills, sustained disability and had to retain an attorney and has incurred legal costs in connection therewith in order to prosecute this action.

24. Reasonable persons in Plaintiff's situation would have been offended by the manner in which Defendant JOHN DOE touched Plaintiff.

25. Defendant JOHN DOE's malicious and oppressive despicable conduct set forth above was intended to cause injury to the Plaintiff and subjected the Plaintiff to cruel and unjust hardship with a willful and conscious disregard for the Plaintiff's rights and safety such that Defendant is subject to punitive damages as set forth in California Civil Code § 3294.

THIRD CAUSE OF ACTION

(Intentional Infliction of Emotional Distress Against Defendant JOHN DOE)

26. The preceding paragraphs of this Complaint are incorporated by reference.

27. Defendant JOHN DOE acted with the intention of causing or reckless disregard of the probability of causing emotional distress when Defendant JOHN DOE, suddenly and without warning, physically attacked and assaulted Plaintiff with such force that Plaintiff suffered injuries and damages.

28. Defendant JOHN DOE's conduct as set forth above was so outrageous as to exceed all bounds of that usually tolerated by a civilized community.

29. As a result of Defendant JOHN DOE's socially unacceptable conduct set forth above the Plaintiff has suffered severe and extreme emotional distress including, but not limited to, highly unpleasant mental suffering and anguish that entails such intense, enduring and nontrivial emotional distress that no reasonable person in a civilized society would be expected to endure.

30. Defendant JOHN DOE's outrageous conduct was the actual and proximate cause of Plaintiff's emotional distress.

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31. Defendant JOHN DOE's outrageous, malicious, oppressive and despicable conduct as set forth above was intended to cause injury to the Plaintiff and subjected the Plaintiff to cruel and unjust hardship with a willful and conscious disregard for the Plaintiff's rights and safety such that Defendant is subject to punitive damages as set forth in California Civil Code § 3294.

FOURTH CAUSE OF ACTION

(Negligence Against All Defendants)

32. The preceding paragraphs of this Complaint are incorporated by reference.

33. Defendants, and each of them, had an affirmative legal duty to use due care for the protection of Plaintiff against unreasonable risk of harm.

34. Defendants, and each of them, formed a special relationship between the security company and/or security guards and subject premises resulting in the affirmative duty on the security company and/or security guards to take all reasonable steps to protect the occupants of the subject premises.

35. Additionally, because of the special relationship between Plaintiff and the subject premises, Defendants SAFEWAY INC., a Delaware corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; and DOES 1 TO 100, inclusive, had a duty to control Defendant JOHN DOE and protect Plaintiff from physical and mental harm.

36. Defendants, and each of them, breached their duty of care for the protection of Plaintiff when Defendant JOHN DOE in the presence of others, aggressively approached Plaintiff on the subject premises, leaned forward and getting within inches of her person, and in a loud bellicose manner threatened to touch and/or grab Plaintiff in a harmful manner such that it reasonably appeared that Defendant JOHN DOE was about to carry out the threat; Defendant JOHN DOE, suddenly and without warning, physically attacked and assaulted Plaintiff with such force that Plaintiff suffered injuries and damages.

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37. As a direct result of the breach of their affirmative duty to protect Plaintiff from physical or psychological injury while at the subject premises, the malfeasance and/or nonfeasance of Defendants, and each of them, was the proximate or legal cause of Plaintiff's injuries.

38. The conduct of Defendants, and each of them, was a substantial factor in causing Plaintiff's harm.

39. As a result of the conduct of Defendants, and each of them, the Plaintiff was physically and psychologically damaged, incurred medical bills, sustained disability and had to retain an attorney and has incurred legal costs in connection therewith in order to prosecute this action.

FIFTH CAUSE OF ACTION

(Negligent Hiring, Supervision, And Retention Against Defendants SAFEWAY INC., a Delaware corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; and DOES 1 TO 100, inclusive)

40. The preceding paragraphs of this Complaint are incorporated by reference.

41. Defendants SAFEWAY INC., a Delaware corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; and DOES 1 TO 100, inclusive, knew or should have known that Defendant JOHN DOE was incompetent and unfit and that his incompetence and unfitness created a particular risk to others, including Plaintiff.

42. Defendant JOHN DOE's incompetence and unfitness harmed Plaintiff.

43. As a result of the conduct of Defendants, and each of them, the Plaintiff was physically and psychologically damaged, incurred medical bills, sustained disability and had to retain an attorney and has incurred legal costs in connection therewith in order to prosecute this action.

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44. Defendants SAFEWAY INC., a Delaware corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; and DOES 1 TO 100, inclusive, negligence in hiring, supervising and/or retaining Defendant JOHN DOE was a substantial factor in causing Plaintiff's harm.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against Defendants as follows:

1. AS TO THE FIRST CAUSE OF ACTION AGAINST DEFENDANT JOHN DOE, AS FOLLOWS:

a. For general damages in a sum according to proof at time of trial;

b. For special damages in a sum according to proof at time of trial;

c. For punitive and/or exemplary damages in an amount appropriate to punish Defendant and deter others from engaging in similar misconduct;

2. AS TO THE SECOND CAUSE OF ACTION AGAINST DEFENDANT JOHN DOE, AS FOLLOWS:

a. For general damages in a sum according to proof at time of trial;

b. For special damages in a sum according to proof at time of trial;

c. For punitive and/or exemplary damages in an amount appropriate to punish Defendant and deter others from engaging in similar misconduct;

3. AS TO THE THIRD CAUSE OF ACTION AGAINST DEFENDANT JOHN DOE, AS FOLLOWS:

a. For general damages in a sum according to proof at time of trial;

b. For special damages in a sum according to proof at time of trial;

c. For punitive and/or exemplary damages in an amount appropriate to punish Defendant and deter others from engaging in similar misconduct;

4. AS TO THE FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS, AS FOLLOWS:

a. For general damages in a sum according to proof at time of trial;

b. For special damages in a sum according to proof at time of trial;

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5. AS TO THE FIFTH CAUSE OF ACTION AGAINST DEFENDANTS SAFEWAY INC., a Delaware corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; and DOES 1 TO 100, inclusive, AS FOLLOWS:

a. For general damages in a sum according to proof at time of trial;

b. For special damages in a sum according to proof at time of trial;

6. AS TO ALL CAUSES OF ACTION AGAINST EACH AND EVERY DEFENDANT, AS FOLLOWS:

a. For costs of suit herein incurred;

b. For prejudgment interest at the legal rate;

c. For such other and further relief as the court may deem just proper.

DATED: May 8, 2024

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Igor Fradkin, Esq.
Attorneys for Plaintiff,
CHARLA WILLIAMS

JURY TRIAL DEMANDED

Plaintiff demands trial by jury of all issues so triable.

DATED: May 8, 2024

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